

Business Sale Agreement

This Business Sale Agreement ("Agreement") is made and entered into as of _____,
By and Between:

Seller: _____, doing business as _____, with a principal place of business at _____
("Seller").

and

Buyer: _____, doing business as _____, with a principal place of business at _____
("Buyer").

The parties agree as follows:

1. Sale of Business

1.1. Purchased Assets:

Seller agrees to sell, assign, transfer, and convey to Buyer all of Seller's right, title, and interest in and to the following assets of the business:

- ♦ **Business Name:**
- ♦ **Physical Assets:**
- ♦ **Intellectual Property:**
- ♦ **Customer Lists & Goodwill:**
- ♦ **Contracts & Agreements:**
- ♦ **Inventory (attached as Exhibit B):**

1.2. Liabilities:

Buyer shall (☐ assume / ☐ not assume) the following existing liabilities:

1.3. Excluded Assets:

The following assets are expressly excluded from this sale:

2. Purchase Price and Payment Terms

2.1. Purchase Price:

The total purchase price for the business shall be _____ ("Purchase Price").

2.2. Payment Terms:

- ♦ **Deposit:** _____, due on or before _____.
- ♦ **Balance:** _____, payable as follows: _____.

2.3. Financing:

Buyer (_____ is / _____ is not) obtaining financing. If applicable, the financing terms are attached as Exhibit A.

2.4. Taxes and Fees:

All applicable taxes, duties, and government fees related to this transaction shall be paid by: (Buyer / _____ Seller / _____ shared equally).

2.5. Default:

Failure by Buyer to pay the Purchase Price in accordance with the terms shall result in Seller retaining the deposit as liquidated damages.

3. Closing

3.1. Closing Date:

The Closing shall take place on _____ at _____, or remotely as mutually agreed.

3.2. Seller's Deliverables:

- ♦ Bill of Sale
- ♦ Assignment of Intellectual Property
- ♦ Assignment of Lease (if applicable)
- ♦ Transfer of Vendor Contracts
- ♦ Inventory List
- ♦ Access credentials, keys, passwords

3.3. Buyer's Deliverables:

- ♦ Payment of remaining Purchase Price
- ♦ Signed assumption of contracts and liabilities (if any)

4. Representations and Warranties

4.1. Seller's Representations:

Seller represents and warrants that:

- ◆ Seller is the lawful owner of the business and its assets, free from undisclosed liens or encumbrances.
- ◆ Seller has full legal authority to enter into this Agreement.
- ◆ No litigation, claims, or investigations are pending against the business.
- ◆ All taxes and fees relating to the business have been filed and paid.
- ◆ All information disclosed to Buyer is complete and accurate.

4.2. Buyer's Representations:

Buyer represents that:

- ◆ Buyer has the financial capacity to complete the transaction.
- ◆ Buyer has conducted due diligence and accepts the business in its current state.

5. Non-Compete & Confidentiality

5.1. Non-Compete:

The Seller agrees not to operate, manage, or assist any business similar to or competitive with the sold business within a radius of km for a period of years.

5.2. Confidentiality:

Both parties agree to maintain confidentiality regarding the terms of this Agreement and all proprietary or sensitive business information.

6. Indemnification

- ◆ Seller shall indemnify and hold harmless Buyer from any liabilities, claims, or losses arising from actions or events prior to the Closing Date.
- ◆ Buyer shall indemnify and hold harmless Seller from any liabilities, claims, or losses arising after the Closing Date.

7. General Terms

7.1. Governing Law:

This Agreement shall be governed by the laws of the State of .

7.2. Dispute Resolution:

Any dispute shall be resolved through (arbitration / mediation / court litigation) in .

7.3. Notices:

All notices shall be sent in writing to the addresses listed above, via registered mail or email with delivery confirmation.

7.4. Entire Agreement:

This document constitutes the full agreement between the parties.

7.5. Amendments:

Any amendment must be in writing and signed by both parties.

7.6. Severability:

If any provision is found invalid, the remainder shall continue in effect.

7.7. Force-Majeure:

Neither party shall be liable for delays or failure to perform due to events beyond their control (e.g. natural disasters, war, legal changes).

8. EXECUTION

IN WITNESS WHEREOF, the parties have executed this Agreement as of the Effective Date.

SELLER

Name
Signature

Date

BUYER

Name
Signature

Date

Exhibits:

- ◆ **Exhibit A:** Financing Terms
- ◆ **Exhibit B:** Inventory List
- ◆ **Exhibit C:** Lease Agreement
- ◆ **Exhibit D:** Transition Plan / Post-Sale Support